

**BEFORE THE
FEDERAL MARITIME COMMISSION
DOCKET NO. 26-02**

NANCY PRIOR,

Complainant,

v.

**AMOOV GROUP, FREIGHTLEAD LLC, and AIR 7 SEAS TRANSPORT
LOGISTICS, INC.,**

Respondents.

**COMPLAINANT'S OPPOSITION TO RESPONDENT AIR 7 SEAS' MOTION FOR
LEAVE TO FILE OUT OF TIME**

Complainant, Nancy Prior, acting pro se, hereby submits this Opposition to Respondent Air 7 Seas Transport Logistics, Inc.'s ("Respondent") Motion for Leave to File Out of Time regarding its Reply and Opposition to Complainant's Motion to Compel Discovery Response – Request for Production No. 5 ("Motion"). Complainant respectfully requests that the Presiding Officer deny Respondent's Motion and treat Complainant's Motion to Compel as unopposed.

I. Procedural Standard

Pursuant to 46 C.F.R. § 502.102(b), a motion submitted after the scheduled filing date is treated as a request to accept a late filing and "will only be considered when exceptional circumstances are shown or as justice may require." Routine administrative delays, internal personnel logistical difficulties, or a sophisticated freight forwarder's failure to timely locate its own commercial documentation do not meet this standard.

II. Respondent Improperly Attempts to Litigate the Merits of the Dispute

As an initial matter, Respondent's Motion improperly attempts to re-argue the substantive merits of the underlying dispute rather than addressing the narrow procedural question of its deadline default.

Complainant declines to participate in Respondent's improper attempt to expand a scheduling motion into a trial on the merits. Complainant requests that the Presiding Officer restrict review strictly to Respondent's failure to meet the mandatory discovery deadline, as the underlying factual claims and evidentiary record regarding custody, demands, and payments are matters properly reserved for summary judgment or trial.

III. Respondent Fails to Establish Exceptional Circumstances

Respondent fails to meet the legal threshold for late filing based on the following factors:

1. Respondent's Motion Improperly Imports a Merits Dispute into a Procedural Filing.

Respondent's Motion asserts that delay was caused in part by "Complainant failing to pay its NVOCC for their charges." Complainant had no direct contractual relationship with Respondent and no obligation to pay Respondent directly; Complainant's contract for the underlying shipment was with AMOOV Group. Respondent's attempt to recast a payment dispute between Respondent and its own contracting counterparties as a failure by Complainant is a mischaracterization that improperly imports a merits dispute into this narrow procedural motion.

2. Insufficient Conferral Prior to Filing.

Respondent's own Motion states that counsel wrote to Complainant on June 18, 2026, indicating intent to file, and then filed the Motion the same day at approximately 6:00 PM EST after receiving no response. Respondent's own Certificate of Service reflects this filing was made on June 18, 2026. Complainant received Respondent's correspondence at

approximately 1:48 PM and Respondent filed its Motion at approximately 6:29 PM — a window of less than five hours. This brief window did not provide a meaningful or reasonable opportunity for conferral prior to filing.

IV. Conclusion

Respondent has failed to demonstrate exceptional circumstances or that justice requires acceptance of its untimely filing. Illness of counsel's client and the complexity of document recovery do not constitute the exceptional circumstances required under 46 C.F.R. § 502.102(b). The merits of the underlying dispute are properly reserved for briefing, not a scheduling motion.

For the foregoing reasons, Complainant respectfully requests that the Presiding Officer:

1. DENY Respondent's Motion for Leave to File Out of Time;
2. DEEM Complainant's Motion to Compel Discovery as unopposed; and
3. GRANT such other and further relief as the Commission deems just and proper.

Respectfully submitted,

/s/ Nancy Prior

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Dated: June 22, 2026

CERTIFICATE OF SERVICE

I hereby certify that on this June 22, 2026, a copy of the foregoing Opposition was served via electronic mail upon the following parties of record:

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/s/ Nancy Prior

Nancy Prior, Complainant Pro Se